

		Plaintiffs do not dispute the validity of the §998 offer, nor do they dispute that they did not accept the offer and failed to obtain a better result at trial. Rather, Plaintiff’s argument consists entirely of vague assertions that the amount of costs sought has not been substantiated, notwithstanding the detailed invoices provided in conjunction with Defendant’s memorandum of costs. Accordingly, the motion is DENIED with respect to this item of costs. Defendant shall provide notice of this ruling.
4.	Caton vs. FCA US LLC 23-01361521	Motion for Attorney Fees Plaintiff Angel R. Caton’s motion for attorney fees, costs, and expenses is GRANTED in the total amount of \$37,460.40, consisting of \$35,471.50 in attorney fees and \$1,988.90 in costs and expenses. (See Civ. Code, § 1794, subd. (d); Shumake Decl. at Ex. 6 [accepted 998 offer]; <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095-1096 (<i>PLCM</i>) [lodestar method]; <i>Reynolds v. Ford Motor Company</i> (2020) 47 Cal.App.5th 1105, 1112 [same].) There is no dispute that plaintiff is entitled to his reasonable attorney fees as the prevailing party in this action. (See Civ. Code, § 1794, subd. (d); <i>Wohlgemuth v. Caterpillar Inc.</i> (2012) 207 Cal.App.4th 1252, 1259-1264.) <u>Hourly rates</u> – The court finds the requested hourly rates for attorneys Ary Sarbaz, Carrie Shumake, and Kyle Tracy to be within the reasonable range for partners/senior attorneys/trial attorneys of their respective expertise, skill, and experience. (See Sarbaz Decl. ¶¶ 1, 6, 11-25; see also Shumake Decl. ¶ 1 & Ex. 8; <i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 41.) The court will also allow the requested hourly rate of \$125 for support staff Uriel Layos, as her only time entry shows she performed work typically done by a paralegal (updating/compiling factual data) and the Court finds \$125 is a reasonable rate for such paralegal work. (See Shumake Decl. at Ex. 8 [7/14/25 entry].) As for the remaining requested rates for Franchesca Ann, Alejandra Pastor, Yvette Linares, and Carolyne Castillo, the court finds them to be unreasonably high and excessive and has reduced their rates to \$60/hour. Despite their titles/positions, all of the work they performed was purely clerical/secretarial. (See Shumake Decl. at Ex. 8.) While necessary support services for attorneys, e.g. secretarial and paralegal

services, are includable within an award of attorney fees (*Salton Bay Marina, Inc. v. Imperial Irrigation Dist.* (1985) 172 Cal.App.3d 914, 951), the court may reduce attorney/paralegal rates for purely clerical work as excessive. (See, e.g., *Serrano v. Unruh* (1982) 32 Cal.3d 621, 635, fn. 21 [clerical tasks billed at attorney rates are questionable]; *Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1186-1187 [the trial court “could reasonably have determined that billing at partner rates for” “some work that appears ... to be clerical” was “excessive”]; *Missouri v. Jenkins by Agyei* (1989) 491 U.S. 274, 288, fn. 10, 109 S.Ct. 2463, 2472, fn. 10 [“Of course, purely clerical or secretarial tasks should not be billed at a paralegal rate, regardless of who performs them.”].)

Number of hours – The court finds that all of the hours requested were reasonably incurred in the conduct of this litigation, with the exception of the following: (1) 2.0 hours of Ms. Shumake’s time at \$425/hour to review the tentative rulings for plaintiff’s discovery motions and to appear at the hearings on those matters, as fees for this time (i.e., to prepare for and attend these hearings) have already been granted as part of the sanctions awards issued in conjunction with those motions (see ROA Nos. 69, 80 [5/24/24, 11/22/24 minute orders]); (2) a total of 6 hours of Mr. Tracy’s time at \$650/hour to “review case file” (excessive/duplicative entries, padding), “edit” unidentified “pleadings” (that were never filed with the court), discuss case/trial strategy with a paralegal (“Yvette”), and draft unidentified documents (see Shumake Decl. at Ex. 8 [time entries starting 4/1/25–4/22/25]; see also Sarbaz Decl. ¶ 6 [Tracy “only began working on this case in April 2025, when trial preparation began”]); (3) 0.10 hours of Ms. Pastor’s time to email the client asking for a Yelp review (Shumake Decl. at Ex. 8 [7/22/25 entry]); and (4) all of the 7.0 anticipated hours to review the opposition, prepare a reply, and appear at the hearing on this matter at Ms. Shumake’s current hourly rate of \$475 (Mtn. P&As at p. 6), as plaintiff has failed to substantiate these fees with a declaration or other evidence, and indeed, the reply papers appear to have been prepared by a different attorney, Ezra Ryu. (See Shumake Decl., in passim; Sarbaz Decl., in passim; Ryu Reply Decl., in passim.) Without any evidence as to who actually drafted and/or prepared the reply papers and who will appear at the hearing and at what rate, the court cannot grant these fees. (See *Martino v. Denevi* (1986) 182 Cal.App.3d 553, 558-559.)

	This results in a total attorney fee award of \$35,471.50, calculated as follows: <table> <tr> <td>Total amount of attorney fees requested</td><td>\$44,025.00</td></tr> <tr> <td>2 hours of Shumake's time at \$425/hour to prepare for and attend the hearing on plaintiff's discovery motions, which were previously granted as discovery sanctions</td><td>(\$850.00)</td></tr> <tr> <td>6 hours of Tracy's time at \$650/hour to "review case file" (excessive/duplicative entries, padding), "edit" unidentified "pleadings" (that were never filed with the court), discuss case/trial strategy with a paralegal ("Yvette"), and draft unidentified documents</td><td>(\$3,900.00)</td></tr> <tr> <td>0.1 hours of Pastor's time at \$150/hour to ask the client for a Yelp review</td><td>(\$15.00)</td></tr> <tr> <td>Difference between Ann's total time (0.10 hours) at the requested rate of \$125/hour (\$12.50) versus granted \$60/hour (\$6.00)</td><td>(\$6.50)</td></tr> <tr> <td>Difference between Pastor's remaining total time (0.60 hours) at the requested rate of \$150/hour (\$90.00) versus granted \$60/hour (\$36.00)</td><td>(\$54.00)</td></tr> <tr> <td>Difference between Linares's total time (1.7 hours) at the requested rate of \$250/hour (\$425.00) versus granted \$60/hour (\$102.00)</td><td>(\$323.00)</td></tr> <tr> <td>Difference between Castillo's total time (0.2 hours) at the requested rate of \$200/hour (\$40.00) versus granted \$60/hour (\$12.00)</td><td>(\$28.00)</td></tr> <tr> <td>Difference between Gonzaludo's total time (0.8 hours) at the requested rate of \$125/hour (\$100.00) versus granted \$60/hour (\$48.00)</td><td>(\$52.00)</td></tr> <tr> <td>Unsubstantiated amount requested to review the opposition, prepare a reply, and appear at the hearing on this fee motion</td><td>(\$3,325)</td></tr> </table>	Total amount of attorney fees requested	\$44,025.00	2 hours of Shumake's time at \$425/hour to prepare for and attend the hearing on plaintiff's discovery motions, which were previously granted as discovery sanctions	(\$850.00)	6 hours of Tracy's time at \$650/hour to "review case file" (excessive/duplicative entries, padding), "edit" unidentified "pleadings" (that were never filed with the court), discuss case/trial strategy with a paralegal ("Yvette"), and draft unidentified documents	(\$3,900.00)	0.1 hours of Pastor's time at \$150/hour to ask the client for a Yelp review	(\$15.00)	Difference between Ann's total time (0.10 hours) at the requested rate of \$125/hour (\$12.50) versus granted \$60/hour (\$6.00)	(\$6.50)	Difference between Pastor's remaining total time (0.60 hours) at the requested rate of \$150/hour (\$90.00) versus granted \$60/hour (\$36.00)	(\$54.00)	Difference between Linares's total time (1.7 hours) at the requested rate of \$250/hour (\$425.00) versus granted \$60/hour (\$102.00)	(\$323.00)	Difference between Castillo's total time (0.2 hours) at the requested rate of \$200/hour (\$40.00) versus granted \$60/hour (\$12.00)	(\$28.00)	Difference between Gonzaludo's total time (0.8 hours) at the requested rate of \$125/hour (\$100.00) versus granted \$60/hour (\$48.00)	(\$52.00)	Unsubstantiated amount requested to review the opposition, prepare a reply, and appear at the hearing on this fee motion	(\$3,325)
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		Total amount of attorney fees granted \$35,471.50 Plaintiff is also entitled to “costs and expenses” incurred in pursuing his Song-Beverly Act claims and has filed a memorandum of costs seeking \$1,988.90. (See Civ. Code, § 1794, subd. (d); see also Sarbaz Decl. ¶ 9; Shumake Decl. at Ex. 9; ROA No. 121 [11/17/25 memorandum of costs].) Defendant has not filed a motion to tax costs to date and has not challenged any of the costs in its opposition to this motion. As such, all \$1,988.90 in costs and expenses are granted. (See <i>Douglas v. Willis</i> (1994) 27 Cal.App.4th 287, 289-290 [““failure to file a motion to tax costs constitutes a waiver of the right to object””].) Plaintiff shall give notice.
5.	The Designers NYC, LLC dba Little Big Brands vs. Brand Models & Talent, Inc. 21-01204721	Motion for Attorney Fees The motion by plaintiff The Designers NYC, Inc., dba Little Big Brands for attorney fees is DENIED. (Code Civ. Proc., § 1021 [“Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties”]; <i>Trope v. Katz</i> (1995) 11 Cal.4th 274, 278 [“California follows what is commonly referred to as the American rule, which provides that each party to a lawsuit must ordinarily pay his own attorney fees”].) Moving party cites no authority allowing it to recover attorney fees incurred in this action. Moving party did not sue for breach of contract, and cites no authority allowing fees under Civ. Code, § 3300. Further, this Court effectively determined that moving party was 67% at fault for the damages incurred in settling the underlying litigation. (Scheper Decl. in support of motion, ¶ 7 [“the Court found Plaintiff incurred \$90,000 in settlement and \$28,000 in legal fees and costs, totaling \$118,000, of which it awarded \$38,940”]; see also Ruling and Statement of Decision [ROA 245], § V “Damages” [apportioning 33% of liability to defendant].) Thus, moving party has not shown that “the trier of fact determined that the indemnitee was without fault in the principal case which is the basis for the action in indemnity.” (Code Civ. Proc., § 1021.6, subd. (c).) Defendant Brand Models and Talent, Inc. shall give notice.